

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: Sept. 21, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR198048	<i>Fazzio Family Trust</i>	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2			
LINE 3			
LINE 4			

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INTRODUCTION

On September 9, 2024, petitioners Katherine Rodda and Anthony V. Fazzio, as co-trustees of the Bypass Trust created under the Fazzio Family Trust (collectively, “Petitioners”) initiated this action by filing the original petition to Invalidate Trust Instruments; to Invalidate Deed; Financial Elder Abuse; Disinheritance; Breach of Fiduciary Duty. Petitioners are the children of Anthony J. Fazzio (“Decedent”), who passed on November 19, 2023. Prior to his death, Decedent married Fidelis E. Campion a.k.a. Fidelis DeCruz (“Fidelis”).¹ In 2019, Decedent amended the Fazzio Family Trust to disinherit Petitioners and leave most of the assets to Fidelis.

On April 7, 2026, Petitioners filed a notice of lis pendens. The lis pendens was recorded against the real property commonly known as 3033 Kaiser Drive #B, Santa Clara, California 95051 (the “Property”). The original petition alleges no facts concerning the Property.

On June 11, 2026, the court granted Petitioners’ motion for leave to amend the original petition. On June 12, 2026, Petitioner’s filed the operative first amended petition (“FAP”), adding Henry DeCruz (“Henry”) and Vanessa DeCruz (“Vanessa”) as respondents to the first cause of action for invalidation of the 2019 trust instruments and second cause of action for financial elder abuse. The FAP also added various causes of action, including a sixth cause of action under the Uniform Voidable Transactions Act (“UVTA”). That cause of action is brought to void the April 4, 2024 transfer of the Property by Fidelis to her siblings, Henry and Vanessa.

On August 19, 2026, Vanessa filed the present motion to expunge lis pendens and requested \$4,992.00 in attorney’s fees and costs. On September 8, 2026, Petitioners filed an opposition to this motion, contending that the motion is moot because the notice of lis pendens had been withdrawn. On September 14, 2026, Vanessa submitted a reply for filing.

DISCUSSION

I. Vanessa’s Motion to Expunge is Denied as Moot.

Vanessa moves to expunge the lis pendens on the grounds that (1) the lis pendens is based on the original petition, which does not allege a real property claim; and (2) Petitioners cannot establish the probable validity of the UVTA cause of action alleged in the FAP. (Notice, p. 2:4-6.) Petitioners oppose the motion contending that (1) Vanessa has not appeared in this action and therefore lacks standing to bring the motion; and (2) the motion is nonetheless moot because the notice has been withdrawn. (Opposition, pp. 3:19-4:6.)

¹ Because all individual respondents share the same surname, the court refers to them the by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice.

(Code Civ. Proc., § 405.30.) The prevailing party on a motion to expunge shall be awarded reasonable attorney's fees and costs for making or opposing the motion unless the court finds the other party acted with substantial justification or other circumstances make the imposition of such fees and costs unjust. (Code Civ. Proc., § 405.38.)

Vanessa's motion is not premature as Petitioners contend. On August 19, 2026, Vanessa appeared by filing a notice of limited scope representation. And by filing the present motion, Vanessa has appeared in this action. (*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32, 52 ["a party who seeks relief on any basis other than a motion to quash for lack of personal jurisdiction will be deemed to have made a general appearance"].)

In any event, because Petitioners have since withdrawn their notice of lis pendens, the motion to expunge is DENIED as MOOT.

II. Vanessa's Request for Sanctions is Granted.

Vanessa contends that even if the lis pendens has been withdrawn, she is entitled to her attorney's fees and costs because (1) the original petition failed to allege a real property claim; and (2) Petitioners do not establish a probable validity of the UVTa cause of action.

[W]hen a lis pendens is withdrawn while a motion to expunge is pending, the moving party is not automatically entitled to attorney fees, nor automatically denied attorney fees, under section 405.38. Instead, based on the practical approach we adopt here, the trial court has the discretion to award attorney fees based on a determination of which party would have prevailed on the motion, and whether the lis pendens claimant acted with substantial justification in withdrawing the lis pendens, or whether, in light of all of the circumstances, the imposition of fees would otherwise be unjust.

(*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010, 1024-1025.)

The award of attorney's fees is warranted. First, Vanessa would have prevailed on the motion to expunge. Code of Civil Procedure section 405.31 provides in relevant part, "the court shall order the notice expunged if the court finds that *the pleading on which the notice is based* does not contain a real property claim[.]" (Code Civ. Proc., § 405.31.) The original petition provides the basis for the April 7, 2026 notice of lis pendens and does not allege a real property claim concerning the Property. (*Jackpot Harvesting Co., Inc. v. Super. Ct.* (2018) 26 Cal.App.5th 125, 140 [noting statutory interpretation requires examining the statute and giving it a plain and commonsense meaning]; see *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 651 [noting legislative intent to restrict the application of the motion to expunge statute]; see also Code Civ. Proc., § 405.4 [defining "real property claim" as a cause of action, if meritorious, would affect title or right of possession of a specific real property].)). Petitioners contend that the original petition encompasses a real property claim concerning the Property because Fidelis's deposition testimony included facts that demonstrate she utilized community funds to pay the mortgage and expenses on the Property. (*Id.* at p. 5:16-22.) As

Vanessa points out, this theory is not alleged in either the original petition or the FAP, and therefore, does not form the basis for the notice of lis pendens.

Even if the court were to consider the FAP, Petitioners have not established the probable validity of the UVTA cause of action. Claims for fraudulent transfer are governed by the UVTA, Civil Code section 3439, et seq. Under that statute, a transfer of property by a debtor is voidable if the debtor made the transfer “[w]ith the actual intent to hinder, delay, or defraud any creditor of the debtor.” (Civ. Code, § 3439.04, subd. (a)(1).) The UVTA prevents debtors from placing property that should be available to satisfy a debt beyond the reach of creditors. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 817.) As Vanessa points out, Petitioners have not demonstrated by a preponderance of the evidence that they are more likely than not to obtain judgment on the real property claim. While Petitioners may have established “actual intent” for purposes of the statute (Opposition, p. 7:20-25)², Petitioners do not establish that they are creditors for purposes of the UVTA or that they have been injured. (*Mehrtash v. Mehrtash* (2001) 93 Cal.App.4th 75, 80 [no injury to creditor unless transfer places property that would be subject to payment of debt beyond creditor’s reach].)

Second, Petitioners do not demonstrate substantial justification in withdrawing the notice. Petitioners recorded the withdrawal of the notice for lis pendens the day their opposition was due and provide no explanation or context for the withdrawal.

Third, Petitioners do not demonstrate that the imposition of attorney’s fees would be unjust. While Petitioners argue that Vanessa’s failure to meet and confer prior to filing the motion renders the imposition of attorney’s fees unjust, they also acknowledge that there is no meet and confer requirement under the statute. Petitioners contend that had Vanessa raised the timing issue prior to filing her motion, the parties could have agreed on a withdrawal of the lis pendens, obviating the need for the motion. (Opposition, p. 8:15-20.) Even so, Petitioners waited until the day their opposition was due to record the withdrawal. As noted above, Petitioners provide no context for their withdrawal recorded three weeks after Vanessa filed her motion.

Vanessa seeks an award of \$4,992.00 based on 6.2 hours of attorney time spent preparing the motion, a \$60.00 filing fee, three hours of anticipated attorney time, and an anticipated \$102.00 in recording fees for the order to expunge. (Li Decl., ¶¶ 4-5, 7.) Vanessa’s requests cannot be granted in full because it accounts for time and fees that have not been incurred. (See *Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1551, 1564 [limiting award of attorney’s fees to time actually spent in the discovery context].) Thus, Vanessa’s request for attorney’s fees is GRANTED IN PART in the amount of \$3,315.00 (6.2 hours x \$525.00 + \$60.00). Petitioners shall pay this fee to Vanessa’s counsel within 30 calendar days of this Order.

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² Civil Code section 3439.04 subdivision (b) provides “badges of fraud” to infer actual fraudulent intent. These badges include, among others: (1) whether the transfer was to an insider; (2) whether the transfer occurred after debtor was sued; and (3) whether the value of the consideration received by the debtor was reasonably equivalent to the value of the asset. (Civ. Code, § 3439.04, subd. (b)(1), (4), (8).) Petitioners contend that Fidelis transferred the property to Henry and Vanessa for no consideration shortly after she was served with the summons. (Opposition, p. 7:20-25.)

CONCLUSION

Vanessa's motion to expunge is DENIED AS MOOT. Vanessa's request for attorney's fees and cost is GRANTED IN PART in the amount of \$3,315.00.

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